

NOTE: This bill has been prepared for the signatures of the appropriate legislative officers and the Governor. To determine whether the Governor has signed the bill or taken other action on it, please consult the legislative status sheet, the legislative history, or the Session Laws.



HOUSE BILL 26-1170

BY REPRESENTATIVE(S) Sirota, Brown, Taggart, Duran, Gonzalez R.,
Hamrick, Joseph, Lieder, Nguyen, McCluskie;
also SENATOR(S) Bridges, Amabile, Kirkmeyer.

CONCERNING A SUPPLEMENTAL APPROPRIATION TO THE DEPARTMENT OF
TRANSPORTATION.

Be it enacted by the General Assembly of the State of Colorado:

**SECTION 1. Appropriation to the department of transportation
for the fiscal year beginning July 1, 2025.** In Session Laws of Colorado
2025, section 2 of chapter 476, (SB 25-206), **amend** Part XXII as follows:

Section 2. **Appropriation.**

*Capital letters or bold & italic numbers indicate new material added to existing law; dashes
through words or numbers indicate deletions from existing law and such material is not part of
the act.*

ITEM & SUBTOTAL	TOTAL	APPROPRIATION FROM				
		GENERAL FUND	GENERAL FUND EXEMPT	CASH FUNDS	REAPPROPRIATED FUNDS	FEDERAL FUNDS
PART XXII						
DEPARTMENT OF TRANSPORTATION						
(1) ADMINISTRATION	53,047,230 50,412,009 (162.5 FTE)			52,977,230 ^a 50,342,009 ^a	70,000 ^b	
^a This amount shall be from the State Highway Fund created in Section 43-1-219, C.R.S., from revenues credited pursuant to Section 43-4-205 (5)(a), C.R.S.						
^b This amount shall be funded internally by various cash fund sources appropriated in the Construction, Maintenance, and Operations section.						
(2) CONSTRUCTION, MAINTENANCE, AND OPERATIONS	1,649,205,773 1,651,840,994 (3,156.0 FTE)			843,911,911(I) ^a 846,547,132(I) ^a	1,111,756(I) ^b	804,182,106(I)
^a Of this amount, an estimated \$779,418,925 \$782,054,146 shall be from the State Highway Fund created in Section 43-1-219, C.R.S., and \$64,492,986 shall be from various department sources including: the Aviation Fund created in Section 43-10-109 (1), C.R.S., the State Transit and Rail Fund created in Section 43-4-811 (2), C.R.S., the Law Enforcement Assistance Fund created in Section 43-4-401, C.R.S., and interest earnings from the loans and balances of the Transportation Infrastructure Revolving Fund created in Section 43-1-113.5 (1), C.R.S.						
^b This amount shall be funded from various sources of reappropriated funds.						
(3) STATEWIDE BRIDGE AND TUNNEL ENTERPRISE	181,374,655			166,374,655(I) ^a (1.0 FTE)		15,000,000(I)
^a This amount shall be from the Statewide Bridge and Tunnel Enterprise Special Revenue Fund created in Section 43-4-805 (3)(a), C.R.S. These funds are subject to allocation by the Statewide Bridge Enterprise Board pursuant to Section 43-4-805 (3)(b), C.R.S., and are included for informational purposes only.						

ITEM & SUBTOTAL	TOTAL	APPROPRIATION FROM				
		GENERAL FUND	GENERAL FUND EXEMPT	CASH FUNDS	REAPPROPRIATED FUNDS	FEDERAL FUNDS
(4) HIGH PERFORMANCE TRANSPORTATION ENTERPRISE	235,687,122			231,687,122(I) ^a (9.0 FTE)	4,000,000(I) ^b	

^a This amount shall be from the Statewide Transportation Enterprise Special Revenue Fund created in Section 43-4-806 (3)(a), C.R.S. These funds are subject to allocation by the High-Performance Transportation Enterprise Board pursuant to Section 43-4-806 (3), C.R.S., and are included for informational purposes only.

^b This amount shall be from fees paid from the Construction, Maintenance, and Operations line item to the Statewide Transportation Enterprise Operating Fund created in Section 43-4-806 (4), C.R.S.

(5) SPECIAL PURPOSE

Marijuana Impaired Driving Program	450,000			450,000 ^a		
Multimodal Transportation Projects ¹⁰³	<u>20,612,617</u>			20,612,617 ^b		
	21,062,617					

^a This amount shall be from the Marijuana Tax Cash Fund created in Section 39-28.8-501 (1), C.R.S.

^b This amount shall be from the Multimodal Transportation and Mitigation Options Fund created in Section 43-4-1103 (1)(a), C.R.S.

**(6) NONATTAINMENT
AREA AIR POLLUTION
MITIGATION
ENTERPRISE**

13,377,602	13,377,602(I) ^a
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^a This amount shall be from the Nonattainment Area Air Pollution Mitigation Enterprise Fund created in Section 43-4-1303 (5)(a), C.R.S. These funds are subject to allocation by the Nonattainment Area Air Pollution Mitigation Enterprise Board pursuant to Section 43-4-1303, C.R.S., and are included for informational purposes only.

		APPROPRIATION FROM				
ITEM & SUBTOTAL	TOTAL	GENERAL FUND	GENERAL FUND EXEMPT	CASH FUNDS	REAPPROPRIATED FUNDS	FEDERAL FUNDS
(7) CLEAN TRANSIT ENTERPRISE						
Clean Transit Enterprise						
Cash Fund ¹⁰⁴	49,089,048			49,089,048 ^a		
Local Transit and Rail Grant						
Programs	<u>55,551,966</u>			55,551,966(I) ^b		
	104,641,014					

^a This amount shall be from the Clean Transit Enterprise Fund created in Section 43-4-1203 (5)(a), C.R.S.

^b Of this amount, \$38,886,376 shall be from the Local Transit Operations Cash Fund created in Section 43-4-1204 (3)(a), C.R.S., \$11,110,393 shall be from the Rail Funding Program Cash Fund created in Section 43-4-1204 (5)(a), C.R.S., and an estimated \$5,555,197 shall be from the Local Transit Grant Program Cash Fund created in Section 43-1204 (4)(a), C.R.S. These funds are subject to allocation by the Clean Transit Enterprise Board pursuant to Section 43-4-1203, C.R.S., and are included for informational purposes only.

**(8) FUELS IMPACT
ENTERPRISE**

15,000,000 15,000,000(I)^a

^a This amount shall be from the Fuels Impact Enterprise created in Section 43-4-1504(b)(I). These funds are subject to allocation by the Transportation Commission pursuant to Section 43-4-1503, C.R.S., and are included for informational purposes only.

**TOTALS PART XXII
(TRANSPORTATION)**

\$2,273,396,013 \$1,449,032,151^a \$5,181,756^b \$819,182,106^c

^a Of this amount, ~~\$1,325,903,256~~ \$1,328,538,477 contains an (I) notation.

^b Of this amount, \$5,111,756 contains an (I) notation.

^c This amount contains an (I) notation.

FOOTNOTES -- The following statements are referenced to the numbered footnotes throughout section 2.

103 Department of Transportation, Special Purpose, Multimodal Transportation Projects - This appropriation remains available for expenditure until the close of the 2028-29 state fiscal year.

ITEM & SUBTOTAL	TOTAL	APPROPRIATION FROM				
		GENERAL FUND	GENERAL FUND EXEMPT	CASH FUNDS	REAPPROPRIATED FUNDS	FEDERAL FUNDS
<u>104</u>	Department of Transportation, Clean Transit Enterprise, Clean Transit Enterprise Cash Fund - This appropriation remains available for expenditure until the close of the 2028-29 state fiscal year.					

SECTION 2. Safety clause. The general assembly finds, determines, and declares that this act is necessary for the immediate preservation of the public peace, health, or safety or for appropriations for the support and maintenance of the departments of the state and state institutions.

Julie McCluskie
SPEAKER OF THE HOUSE
OF REPRESENTATIVES

James Rashad Coleman, Sr.
PRESIDENT OF
THE SENATE

Vanessa Reilly
CHIEF CLERK OF THE HOUSE
OF REPRESENTATIVES

Esther van Mourik
SECRETARY OF
THE SENATE

APPROVED _____

(Date and Time)

Jared S. Polis
GOVERNOR OF THE STATE OF COLORADO